

Petitioner Docketing Statement

Basis for review and final order

A.R.M. files this docketing statement on February 27, 2025 and seeks review of the Board's January 13 final order dismissing the CAT appeal. The petition was first tendered on February 11, twenty-nine days after the order. Counsel supplied the missing eight-page order copy on February 12 in response to the clerk's notice, without changing the parties, agency, challenged order, requested relief, or original receipt history. No later agency order or reopening event is asserted.

The statement identifies Section 1252 as the statutory review framework and Federal Rule of Appellate Procedure 15 as the petition procedure. It does not ask the clerk to decide a contested filing-time issue through docket notation. The institutional respondent has appeared and has not filed a timing motion directed to the actual tender. A.R.M. preserves the dates and authorities so the panel can address any properly presented question on a complete procedural record.

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Issues expected to be presented

The petition presents whether the agency assessed the combined risk alleged from Unit Four, Harbor League, registry access, and return identification; whether it meaningfully considered complaint routing and official nonintervention under the acquiescence standard; and how Section 1252(b)(4)(B) governs review without appellate factfinding. A.R.M. also expects a record-composition question concerning admitted P-7 and a separate request concerning T.R.'s post-order proffer.

The issues are related but not interchangeable. A correction order can determine which evidence was before the agency without resolving the weight of that evidence. A supplementation ruling can exclude later material without deciding whether existing AR pages require remand. The merits panel may then assess the adequacy of the agency's reasoning on the certified record while leaving probability, credibility, and official-awareness findings to the agency.

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Record status

The February 18 agency index omitted the eighteen-page P-7 declaration even though the hearing record and decisions describe it as admitted. A.R.M.'s February 26 correction motion seeks restoration of the identical stored object and preservation of the initial transmission. The February 24 supplementation motion concerns a different declaration signed after the Board order. The institutional respondent opposes adding that later material and has not yet filed its complete response to both motions.

Until the court rules, counsel will keep the two document sets distinct. AR citations refer to materials represented as part of the agency proceedings; PA citations refer to filings in the court of appeals. A final corrected agency-page range should not be assumed before verification and certification. Briefing should begin only after the court resolves both motions and identifies the operative review record.

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Related matters and oral argument

Counsel is aware of no related petition, appeal, or proceeding involving the same agency order. The related-case search covered A.R.M.'s agency docket number, the January 13 order date, and the institutional respondent's appellate matters. A.R.M. requests oral argument because aggregation, acquiescence, record composition, and the limits of appellate review require careful separation of evidentiary and legal questions. Argument would allow the panel to test which propositions come from the agency record and which are counsel's inferences.

Counsel anticipates relying on the briefs, the corrected certification if ordered, and the authorities identified in the case filings. A.R.M. does not request live testimony or admission of new evidence at argument. The requested relief is vacatur and remand for lawful agency analysis, not a first-instance appellate finding that CAT protection must be granted. Rebuttal time may be reserved under the court's later calendar notice.